

Pooja Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 March 2016 · Writ-C No. 51751 of 2015 · **Writ disposed; representation to Executive Engineer under Supply Code.**

HEADNOTE

Where a consumer alleged that recovery proceedings ignored amounts already deposited, the Allahabad High Court declined to decide disputed questions of fact and disposed of the writ by granting liberty to represent to the Executive Engineer (UPPCL), DVVNL, Raniya, Kanpur Dehat, who was to examine and remedy the grievance in accordance with the U.P. Electricity Supply Code, 2005, preferably within three months.

FACTUAL SUMMARY

Pooja Gupta petitioned the Allahabad High Court against the State of U.P. and others, including the distribution licensee. After adjournments from September 2015, she contended that she had deposited various amounts, yet when recovery proceedings were initiated those deposits were not taken into account and an excess sum was being recovered. The dispute related to Dakshinanchal Vidyut Vitran Nigam Ltd. at Raniya, Kanpur Dehat. Counsel for the corporation had earlier been asked to obtain instructions.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

representation on disputed recovery of dues

HOLDING

Faced with a writ alleging that recovery ignored amounts already deposited, the Court held that disputed questions of fact should first be examined by the Executive Engineer (UPPCL), DVVNL, Raniya, Kanpur Dehat. The petitioner was given liberty to represent; that authority was to look into, examine and remedy the grievance in accordance with the U.P. Electricity Supply Code, 2005, preferably within three months of the representation with a certified copy of the order. The writ was disposed of on that direction. No specific Supply Code clause was cited. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Where a consumer alleged that recovery proceedings ignored amounts already deposited, the Allahabad High Court declined to decide disputed questions of fact and disposed of the writ by granting liberty to represent to the Executive Engineer (UPPCL), DVVNL, Raniya, Kanpur Dehat ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DEPOSITS HAD BEEN CREDITED AND WHETHER THE RECOVERY WAS EXCESSIVE

The Court treated these as disputed questions of fact for the Executive Engineer to examine under the Supply Code. ¶ 1